

Vaidya Nath Vishwakarma v. State of U.P.

Allahabad High Court · Division Bench · 1 August 2016 · Writ - C No. 35253 of 2016 · **Writ disposed; pay earlier revised-bill arrears before fresh Clause 6.5 consideration.**

HEADNOTE

A consumer whose earlier Clause 6.5 objection has already been decided and a revised bill issued must first clear those arrears before a later Clause 6.5 application will be considered afresh. The writ seeking a direction to decide a subsequent representation against a higher bill was disposed of on that condition.

FACTUAL SUMMARY

The petitioner had earlier obtained a writ direction dated 2 December 2014 in Writ-C No. 64856 of 2014 to file a Clause 6.5 objection for correction of his electricity bill. The Electricity Department decided that objection and issued a revised bill dated 7 January 2015, reducing the demand from Rs. 57,142 to Rs. 56,814, which the petitioner did not pay. He then filed this writ seeking a direction to decide a later Clause 6.5 representation dated 18 April 2016 against a bill of Rs. 1,21,235.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where an earlier objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 has been decided and a revised bill issued, the consumer must first clear those arrears before a subsequent Clause 6.5 application on a later bill will be considered afresh. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 18 APRIL 2016 CLAUSE 6.5 REPRESENTATION AND THE BILL OF RS. 1,21,235

Left for consideration afresh under Clause 6.5 only after the 7 January 2015 revised-bill arrears are cleared. ¶ 4